

CITY OF HARDEEVILLE
REGULAR CITY COUNCIL MEETING
AND PUBLIC HEARINGS
MINUTES
AUGUST 1, 2013
6:00 PM

Present: Mayor Bronco Bostick, Council Members Sherry Carroll and Sal Arzillo and Scott Ready, City Manager Bob Nanni, City Clerk Lori Pomarico, Fire Chief Dan Morgan, Fire Captain Clyde Thomas, Planning Director Brana Snowden, Planner I Kirsty Sanchez, Recreation Director Addison Jarrell, Downtown Development Manager Chris Damgen, Police Sergeant Harry German, Lieutenant Steve Thomas, Media Technician Brandon Sligh

Absent: Mayor Pro Tem Michael Sweeney

I. CALL TO ORDER

Mayor Bronco Bostick called the meeting to order at 6:00 p.m.

II. INVOCATION & PLEDGE OF ALLEGIANCE

City Manager Bob Nanni gave the invocation.

III. PUBLIC PRESENTATIONS/COMMENTS (3 MINUTE TIME LIMIT)

Mayor Bostick read the rules for public comment.

Ms. Lyndia Moody Daniels of 711 Main Street addressed the Council with concerns. In 2002 her home was inundated with water up to her garage door because Dr. Barrett was allowed to build his property up 12 inches higher than hers; at that time Hardeeville did not have a code enforcer. Ms. Daniels commented that she is appalled now as there has been work to dig a pond on her property that she donated to the City but they have not been working for over a month and it was not due to the rain. No one has called her to tell her why; she has called Cleland Construction, they do not call her back. Ms. Daniels added that they are living in mud; her daughter cannot get in or out of her driveway. The work that was started has been fantastic and she acknowledged Planning Director Brana Snowden and Chris Damgen, but no one has told her why everything has come to a halt. Ms. Daniels stated that she wants answers.

Ms. Didi Pettway, HR recruiter for Waffle House, addressed Council. Ms. Pettway stated that there will be a new Waffle House at Exit 8 and they are having difficulty staffing this restaurant. Ms. Pettway asked that Council help to get the word out that they are hiring. Ms. Pettway left business cards and flyers for those interested in employment with Waffle House.

Mr. Nathaniel Wright, 10685 Speedway Blvd., addressed Council regarding drainage. The City is spending half a million dollars for drainage in Hardeeville and they don't know why the water cannot get out of Hardeeville, it is because of the problem on Hwy 17. The water in Hardeeville comes down two ditches on both sides of the road on Hwy 17. The water behind his home is about four feet deep and is flooding all of his property. The canal goes into New River, then goes into the Savannah River. The canal is filled up with leaves and debris and the water cannot get out. On Toomerville there are six big pipes about six feet in diameter and the water cannot get out; it is backing up to his property. Mr. Wright stated that nobody should be above the law and nobody should be under the law because they are taxpayers. The water that is being sent from Hardeeville; the new truck stop that has twenty plus acres is paved and all of the water is coming to his property; water from I-95 is coming to his property; it is wrong.

Mr. Ty Rietkovich thanked the Mayor and Council for the proclamation that was given to USCB Girls Softball team; he was unable to attend. He appreciates the support that this Council has given to their efforts the last two years.

Mr. John Kemp, 319 Shearwater Point Drive, addressed Council on transparency. In the past a person came before Council and stated that projects were going on and no one could get an update; he believes that there was one update, possibly about flooding, and that was it. There are two people here tonight talking about flooding problems that the people have not heard about. It is only when there is an emergency, yet in the paper you only need one meeting to talk about this stuff and that allows a citizen only one time to address Council in public because special meetings don't have public comment. This is just another reason that transparency is not in Council's vocabulary. Mr. Kemp commented that Section 5-21-50 states "towns over 200 required to publish financial statements". He brought that up and was told that he would get a reply that there was a paper out saying they did not have to do that and he never got it; he asked the Council why isn't this being done; transparency in government means you put it out there. Workshops are not transparency, they are not really public, you can order the meeting but it is not on TV, it is not anyplace, you make us work for it and it shouldn't be that way. This meeting is public, it is broadcast and everything is done in public.

Mayor Bostick asked Mr. Kemp who he asked for information about Section 5-21-50. Mr. Kemp responded the City Manager. Mayor Bostick reminded everyone that by State law they only have to have one meeting per month.

Fire Chief Dan Morgan presented Clyde Thomas, the new Training Officer for the Hardeeville Fire Department. Mr. Thomas brings 25 years of fire service experience and most recently coming from the Washington D.C. Fire Department.

Captain Thomas thanked the Council for the opportunity to be here; the last three weeks have been very productive, there is a lot of potential, it is a great opportunity to be a part of a department in a city that is growing and going somewhere. Captain Thomas commented that his experience in fire service is allowing him to do more here than he was able to do in Washington D.C.; he likes the operational aspect as well as the training aspect and this gives him a broad

range to do what he likes to do in the fire service. It is a good group of guys and women and he is looking forward to the challenge and getting them to the next level.

At this time Mayor Bostick recognized the Jasper County Council Chairman, Mr. Henry Etheridge; County Administrator, Mr. Andrew Fulghum; and County Councilman, Mr. Matty Sauls.

Mayor Bostick commented that he agreed with Mr. Wright; drainage is one of his biggest pet peeves. Mayor Bostick indicated that he would like to meet with the Jasper County Council Chair, the County Administrator and the City Manager next week involving Hwy 17.

City Manager Nanni thanked Ms. Daniels for her comments but unfortunately, he does not know what the problem was in 2002 or early 2011. However, sometimes things were done in the past and probably not done appropriately. One thing is the recording of where water and sewer lines are especially in the project area they are talking about. Work had to be stopped because there was an active water line right at the main intersection of Furman Street and Columbia; they also found out there was a large active force main on Main Street. They could not progress because this is a grant project and the grant involves the CDBG who gets their marching orders from the Department of Commerce. The project had to be reengineered to get passed those two pipes; it then had to be cost out; then paperwork had to be done at CDBG through LCOG in Yemassee and then sent to the Department of Commerce. The City then had to get permission for those two change orders, which they have recently received. Everything goes back to work and everything gets started. Since Cleland and the engineers have those approvals in hand, the City needs to know what the new schedule will be and when they get the new schedule they can put the schedule out. Mr. Nanni added that they have identified some problems and they are going to work on those which should make things better for essentially emptying the water in Hardeeville. City Manager Nanni also stated that he thinks everybody should know that the drainage structures were built a long time ago; one of two things can be done; they can be expanded and they can accommodate more water as development progresses or they have to increase the level at which they are maintained; they have to operate at the optimum level or they have to be made bigger. Mr. Nanni stated that he would get with Ms. Daniels and review the information she has and will let her know in particular how this project is going to make things better for her. The City will be getting with other agencies that deal with water beyond the City limits because it impacts the City.

City Manager Nanni addressed Mr. Wright's concerns stating that the water exists Hardeeville and the way the plan is it is supposed to go into the ditches along Hwy 17. However, Mr. Nanni noted that an orange cone was put out on Hwy 17 by one of the Public Works employees last night because they were trying to find out why the water wasn't exiting like it should and why things looked like they were getting backed up. There are a couple of reasons; one is if the Savannah River is up and ultimately that is where the water goes they cannot make space in the river. Where that cone was there is a culvert pipe that is either separated or broken because the water on one side is pretty high and on the other side is pretty low. Mr. Nanni indicated that he is not sure where this is in relation to Mr. Wright's property, but commented that they are not

going to be able to prevent Hardeeville water from going to Hwy 17. What has to be done is there has to be some conveyance structures in front of Mr. Wright's property redefining the ditch so that the water stays within the banks of the ditch and then goes by his property. Mr. Nanni stated that they understand that Mr. Wright has an issue, the City is a little more knowledgeable of it and they will get with the right agencies to try and fix it even though this is not the City of Hardeeville's property.

A comment was made that when this construction project was started to get the water from the City of Hardeeville it should have been thought of where this water is going and where it needs to go. Mayor Bostick stated that he has met with Malzone Russell and Mr. Wright before and at the time the ditches were filled with debris and that is where the County is going to have to come in; there is going to have to be some relief here; they are going to get the water out of the City like they are supposed to but the County needs to get it to the river where it needs to go.

IV. OLD BUSINESS - NONE

V. PRESENTATION & APPROVAL OF MINUTES FROM THE JULY 11, 2013
REGULAR CITY COUNCIL MEETING

A motion was made by Council Member Arzillo to approve the July 11, 2013 Regular City Council Meeting Minutes. The motion received a proper second by Council Member Carroll and carried unanimously.

VI. PRESENTATION & APPROVAL OF MINUTES FROM THE JULY 24, 2013
SPECIAL CITY COUNCIL MEETING

A motion was made by Council Member Carroll to approve the July 24, 2013 Special City Council Meeting Minutes. The motion received a proper second by Council Member Arzillo and carried unanimously.

VII. NEW BUSINESS

A. RECEIPT OF THE ATAX COMMITTEE RECOMMENDATIONS TO
APPROVE OR DISAPPROVE APPROPRIATION OF STATE
ACCOMMODATIONS TAX RECEIPTS TO THE LOWCOUNTRY TOURISM
COMMISSION PURSUANT TO SECTION 6-4-10 OF THE SC CODE OF
LAWS
PUBLIC HEARING

City Manager Nanni stated this is a recommendation of the A-Tax Committee to approve A-Tax funds in the amount of \$6,000 to the Lowcountry Tourism Commission. They intend to use the money for the Lowcountry Visitors' Guidebook and other print media. The Lowcountry Tourism Commission puts in approximately \$45,000 to match funds they need. It is for the promotion of Hardeeville and the Lowcountry and this is an ongoing annual request.

Council Member Ready asked if they submitted a budget with this request. City Manager Nanni responded yes and that they detailed their funds and have also indicated they have an outside auditing source. Mr. Nanni reported details of the budget for Mayor and Council.

The Mayor called for public comment.

There was no public comment. A motion was made by Council Member Carroll to award \$6,000 from A-Tax funds to the Lowcountry Tourism Commission. The motion received a proper second by Council Member Ready and passed unanimously.

B. RECEIPT OF THE ATAX COMMITTEE RECOMMENDATIONS TO
APPROVE OR DISAPPROVE APPROPRIATION OF STATE
ACCOMMODATIONS TAX RECEIPTS TO THE JASPER COUNTY
CHAMBER OF COMMERCE PURSUANT TO SECTION 6-4-10 OF THE SC
CODE OF LAWS
PUBLIC HEARING

City Manager Nanni stated that this is an A-Tax Committee recommendation for the Jasper County Chamber of Commerce for funds in the amount of \$9,600 for a billboard. The Jasper County Chamber of Commerce is looking at a campaign or branding of the entire county; there will be three separate billboards, one for each of the County, Hardeeville and Ridgeland. Mr. Nanni reported that their budget is for \$800 per month for each billboard. The cost of the Hardeeville billboard at Exit 8 will be \$9,600 for the year.

Ms. Kendall Malphrus representing the Jasper County Chamber of Commerce stated that this is a brand new campaign they are starting to brand Jasper County; they want to take the stretch of I-95 starting at the other side of Point South to the other side of Exit 5 so that travelers coming down I-95 know they are in Jasper County and the idea is to have the three billboards have the same look and consistency. Ms. Malphrus indicated that she has received funds from the County and will be going before Ridgeland this month.

Council Member Arzillo asked where the sign will be. Ms. Malphrus responded that it will be somewhere after Exit 18 but before Exit 8. Mr. Arzillo commented that they came up with \$800 a month but a sign has not been picked out. Ms. Malphrus stated that the \$800 is an average; this does not include the production cost.

Council Member Carroll commented that the Chamber is working on another sign and asked how far apart they will be. Ms. Malphrus responded that one will be at Exit 33 and the other is at Exit 18; the plan will be to have Hardeeville's several miles further down.

There was no public comment. A motion was made by Council Member Arzillo to award \$9,600 from A-Tax funds to the Jasper County Chamber of Commerce. The motion received a proper second by Council Member Carroll and passed unanimously.

**C. CONSIDERATION OF ENTERING INTO AN AGREEMENT WITH JASPER
COUNTY ON EXIT 8 MASTER PLAN
PUBLIC COMMENT**

City Manager Nanni stated that this an item discussed at a recent workshop and the County held a workshop on involving master planning the area at Exit 8; Mayor Bostick, Mr. Nanni and Planning Director Snowden attended the County workshop. Mr. Nanni stated that this is an agreement that would involve the City and County and Hardeeville's share is about \$55,000. Mr. Nanni deferred to Ms. Snowden.

Planning Director Snowden gave a powerpoint presentation. County staff began working with two firms, ROI and Alliance Consulting Engineers, to develop an economic catalyst. ROI came back with a proposal for aesthetic analysis including zoning and land use analysis and inventory of businesses, existing and proposed, at Exit 8; Alliance will do infrastructure master plan. The study area is one half mile around the interchanges, Ms. Snowden displayed a map of the area and indicated the three quadrants within the City and the one quadrant located in the County.

Planning Director Snowden stated that a workshop at the County was held on July 15, 2013. The discussion was posed around the City and City Staff's involvement; the proposals are addressed to the County and what type of product would result from these studies. The total cost of the two proposals is \$110,200; County Council would fund half of the cost and the City pay the other half.

Mayor Bostick asked Mr. Marty Sauls, Executive Board Member of the Southern Carolina Alliance, how much money would the Southern Carolina Alliance put toward this. Mr. Sauls responded that Mr. Phil Richardson was unable to attend tonight, but that they are in discussion with the Alliance to see what assistance, if any, they are able to produce financially toward this. Mr. Sauls added that he is uncertain if there are any monies available.

Council Member Arzillo asked County Administrator Fulghum to explain what the need is to do this. Mr. Fulghum responded that he saw the need to work with the firms to try to create something because Exit 8, in his opinion, was developing in a hodgepodge fashion, and they could benefit by having the area master planned. They had some success in doing this with economic development projects with Alliance Consulting Engineers with what is now known as the Regional Industrial Park. It was a bold move for the County Council; they stepped into a different arena and in the absence of having private developers to corral development like this, they stepped into that area; they approved a proposal for the staff to work with Alliance Consulting Engineers to master plan what was essentially a privately owned parcel. The idea was that if they did that they could then try to obtain grants to try to develop the area. This worked fairly well and they had a fairly large prospect interested in the property and they went through the master planning process on that property and they were offered a substantial grant from the Economic Development Administration. Mr. Fulghum stated that the thinking was that

they simulate something like that on this end as well. They also had private interest in Point South and the County proceeded on a path there to establish a county improvement district and explore implementing a TIF in that area. That community of business owners came together and helped form a master plan and to find infrastructure requests that they would like to fund and they are now in the process of putting together the numbers for a TIF where they may be able to bond out those improvements; this seemed to work very well and took about two years to come together. Mr. Fulghum stated that they did not have a lot of interest from the business owners at Exit 8 to work together, but in his experience he has seen individual developers try to develop in that area and there seems to be a more broad approach to that and master planning the area seemed to make sense. Mr. Fulghum stated that he does not think that exit has seen its true potential. There are many property owners in that area; they do not have the interest of a large scale developer coming in and master planning the area so they are stepping into different territory and doing it for themselves.

Mayor Bostick asked how much commercial property is available at Exit 8 for development. Planning Director Snowden responded that she did not have those numbers but would email that information to Council.

Mayor Bostick asked City Manager Nanni to answer the question Council Member Arzillo had posed to County Administrator Fulghum. Mr. Nanni responded that the last time a master plan was done was ten to twelve years ago and things change; demand changes in the community; infrastructure that existed 12 years ago is different today; the gas line moving in and the economic benefit there may be; there are some old agreements in place and maybe the opportunity will arise to update those agreements with the property owners at Exit 8. City Manager Nanni stated that he believes his recommendation is solid, it is a good thing to do, funding is available, there will be updated information to be able to use for marketing or from the perspective if they need help to get grant money. It will possibly awaken SCDOT a little bit to take a better look at Exit 8.

Council Member Arzillo commented that Exit 8 was out of the realm of Hardeeville 15-20 years ago. That is why it is so convoluted, it was never really planned. Mr. Arzillo stated that he was never in favor of spending a lot of money for engineers at one time, he thought it was a waste of money but he has learned a lot since then. Exit 8 needs to be master planned and he thinks that the County coming into this is very important and a great idea to him. Mr. Arzillo stated that he would like to see some of the benefactors of this master plan also come to the forefront, which would be Hilton Head and Bluffton, they are the benefactors of a nice, pretty Exit 8 and probably the County will get to work on that.

Council Member Carroll thanked Marty Sauls, Andy Fulghum and the Jasper County Council and Ridgeland. They have all worked together to do a lot of projects since they were elected; that has not happened in the past and she thinks that it is a good thing and that when they all join together and have the same things in mind they can't do anything but move forward.

Mr. Marty Sauls commented that they were contacted by the Hospital and they are excited and in support of this project and are willing to write a letter of support if need be. Also, Ms. Cindi Williams with the Holiday Inn Express and the group that she represents are in support of it as well as Mr. Seth Clark who represents the group that owns the 263 acres on the southwest quadrant of Exit 8 has taken the initiative to approach the Council and express their approval and excitement about the City of Hardeeville taking the initiative to push this plan forward and what the future holds for them as business owners and stakeholders there. Mr. Sauls thanked the City Council for having the vision and foresight to see the importance of what this project is, they have all been working on it for close to a year and it is a terrific thing to see both governments working together and trying to create economic development and opportunities for the citizens.

The Mayor asked for public comment.

Ms. Carolyn Chisolm commented that she is new to what they want to do at Exit 8 and she asked if Beaufort County is getting involved in it because it is the gateway to Hilton Head. Mayor Bostick responded that they are trying to take away some of the stuff that Hilton Head has before they get there, like motels, restaurants, etc.

Mr. John Kemp commented that looking at the map of Hardeeville, they have a miniscule amount of property there so what they are doing is funding Jasper County's development. Mayor Bostick commented that the majority of the property at Exit 8 is in the City. Mr. Kemp stated that if they look at the map all Hwy 278 is non-Hardeeville. Council Member Carroll added that they are talking about the Exit 8 area. Mr. Kemp stated that only McDonalds and the Hospital is in Hardeeville; they are trying to enhance just a little area 50/50. Mayor Bostick responded that they are not only talking about the circle where McDonald's is, they are talking about the area up to the car lots. Mr. Kemp responded that he understood but that is not Hardeeville and if they look at the maps on line, they are all wrong then; only John Smith Road is Hardeeville, both other sides are Jasper County. Planning Director Snowden indicated on the map that three corners at Exit 8 are in the City only one corner is not and she indicated where on Hwy 278 is in the City.

County Council Chairman Henry Etheridge thanked Council Member Carroll for her comment and he stated that as long as he is on Council and with the Council they have now, they will always work with the two municipalities. Mr. Etheridge commented that 75 percent of the property is in the City of Hardeeville, 25 percent is in the County; they have worked with the City of Hardeeville already by funding some of the engineering work and getting the Hardeeville Commerce Park certified. Hardeeville will benefit from this more than the County; he has talked to realtors and they are excited to be able to take a drawing and show a client this is where they should put a hotel or a restaurant. Mr. Etheridge stated that to his knowledge he has never seen a plan like that, he has never seen a plan for Exit 8 that has those master plans and he thinks this is one of the greatest things that has ever happened to Exit 8.

A motion was made by Council Member Arzillo to approve entering into an agreement with Jasper County on Exit 8 Master Plan. The motion received a proper second by Council Member Ready and passed unanimously.

VIII. MAYOR AND COUNCIL BUSINESS

Council Member Arzillo commented that there has been an astronomical amount of rain and this is the time that they can find the problems and this is the time they need to correct the problems. Regarding Mr. Wright's problem, with the drainage situation on Columbia Street a two acre pond is being built and that is where the water is going; Wilco Hess has about a 30 acre retention pond and that water is not going to go to Mr. Wright's house; Hardeeville has issues too, not all of the water comes from Hardeeville; they are going to do the best they can; it is impossible for the City of Hardeeville to spend tax money to fix problems down the road even though there might be a perception that they caused the problem.

Council Member Arzillo stated that an eight inch natural gas line will be coming into the Industrial Park starting next week.

Council Member Arzillo commented that they have two meetings a month, they can cancel the second meeting and they are as transparent as they can be.

IX. MANAGERS REPORT

A. ACTION ITEMS – NOTE: THESE ITEMS MAY REQUIRE ACTION TO BE TAKEN BY COUNCIL

City Manager Nanni stated that a number of months ago the Police Department applied for a grant from the USDA, a Rural Development Grant, to get some support and money to continue the process of buying body recorders and recorders for the cars. At the time there was nothing available; within the last couple of days RDA came up with \$6,700; the entire cost of the recorders is \$19,000. Council has to approve this before August 9th because RDA has self-imposed time frames and Mr. Nanni replied that it would be difficult to try and ask Council Members to come to a five minute meeting. They worked out a process with him that if Council would accept the \$6,700 this evening and the votes are recorded, they will in turn give us the grant and they will in turn be able to buy those items at a 35% savings. Mr. Nanni stated that if Council is so inclined to accept the \$6,700 grant from the RDA for police equipment if they could make a motion and take a vote and he could either get back with the RDA or forget about it.

Mayor Bostick stated that he would like to put this on the next agenda because they do not need to amend the agenda unless it is absolutely necessary. City Manager Nanni responded that the next agenda is on August 15th and the RDA, according to their process, needs something for August 9th and that is why he said earlier that is why he did not ask to have a special meeting on this because he would be bringing Council in for a five minute item. Basically this is someone

wants to give them \$6,700 towards a purchase and they can take care of the paperwork on it later.

Council Member Carroll stated that she is assuming that when they have money that has not been spent by a certain time they open it back up again so that is why they would not have had a lot of notice on this and she wants to make sure that the public knows it is not something they did not put on the agenda and it should have been there; it is only in the last of couple of days that Mr. Nanni heard about this and if they don't take this they will give it to somebody else. Ms. Carroll added that they can either accept it or they can let somebody else get it. City Manager Nanni stated that they have been very good about adjusting their process so that they would wait for us this evening.

A motion was made by Council Member Carroll to accept these funds. The motion received a proper second by Council Member Ready and passed unanimously.

B. INFORMATION/MISCELLANEOUS

City Manager Nanni reported that there will be a workshop on August 14th; they will talk about assignment of rights and a book reprint.

City Manager Nanni reported that there will be a regular City Council meeting on August 15th.

City Manager Nanni reported that there will be a Charity Golf event for the American Cancer Society on August 19th at the Island West Golf Club; there are plenty of sponsorship opportunities; information available at the desk in City Hall or contact Addison Jarrell; cost for individual player is \$75 and includes 18 holes of golf, cart and lunch.

City Manager Nanni reported that there will be a workshop dealing with the business license ordinance, date to be determined.

City Manager Nanni reported on two positive items. Mr. Nanni read an email from Ms. Janet Carter from Knoxville who wrote to recognize and thank one of the City employees, Matt Evans of the Public Works Department, who helped her and her family when their car broke down on I-95.

City Manager Nanni read a letter from Ms. Linda Nease praising the actions and the excellent job of the Hardeeville Fire Department and other departments that may have been called in when they responded in the early morning of July 21st to one of the buildings that burned at Argent Square Shopping Center; the rear of her property adjoins the shopping center. Ms. Nease stated that she will always thank them when the job they do, which is routine to them, benefits her and her husband and she asked that Mr. Nanni convey to the appropriate parties how much she appreciates all that they did that Sunday morning.

Mayor Bostick stated that Barbara Clark, Hardeeville representative on the Jasper County Council, indicated that the Chair would bring a County Council meeting back to Hardeeville. Chairman Etheridge stated that it has been scheduled for September 3rd.

Mayor Bostick stated that he believes it is Hardeeville's turn to host the next joint council meeting.

Mayor Bostick asked that a meeting be scheduled for the Mayor, Mr. Nanni, the County, Mr. Malzone Russell and one other Council Member about Hwy 17 drainage.

X. ADJOURNMENT

A motion was made by Council Member Arzillo and seconded by Council Member Ready to adjourn the meeting. The motion passed unanimously. The meeting adjourned at 7:25 p.m.

Lori Pomarico, City Clerk

Date

SEAL